

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2019-004792

BETWEEN:

MRS JENNIFER COLLINS

Appellant

- and -

NORTH THAMES NHS FOUNDATION TRUST

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant contends that the Respondent Trust was negligent in failing to diagnose a spinal cord tumour during multiple consultations between 2019 and 2021, resulting in permanent neurological damage that would have been avoided with earlier treatment.

B. RELEVANT FACTS

2. The Appellant attended the Respondent's hospital on five occasions between March 2019 and February 2021 with progressive lower back pain and leg weakness.
3. Despite presenting with red flag symptoms including progressive weakness and bladder dysfunction, no MRI scan was performed until February 2021.
4. The MRI revealed a Grade II astrocytoma compressing the spinal cord at T10-T11.
5. By the time of diagnosis, the Appellant had developed permanent paraparesis affecting mobility.
6. Expert evidence confirms that earlier diagnosis would have enabled less invasive treatment with better outcomes.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - NHS Act 2006
 - Limitation Act 1980, s.11

D. SUBMISSIONS

8. The Respondent breached its duty of care by failing to investigate progressive neurological symptoms appropriately.
9. A reasonably competent clinician would have arranged an MRI scan significantly earlier.
10. The delay in diagnosis caused or materially contributed to the Appellant's permanent disability.
11. The Appellant has lost the chance of a better outcome, which should be compensated.

E. AUTHORITIES

12. The following authorities are relied upon:

- Bolam v Friern Hospital Management Committee [1957] 1 WLR 582
- Bolitho v City and Hackney Health Authority [1998] AC 232
- Montgomery v Lanarkshire Health Board [2015] UKSC 11

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Damages for pain, suffering and loss of amenity
- Past and future care costs
- Loss of earnings
- Interest and costs

Sarah Thompson KC

James Edwards

21 December 2021

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